

<https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Defendants' choice to not timely oppose this Motion to Seal is a deemed to be their consent to the granting of the motion. Accordingly, the Court finds good cause to grant this motion.

Ruling

1. Plaintiff's Motion to Seal is **granted**. The Court will execute and file the proposed order lodged on December 22, 2025, and specifically, the option that appears on page 2, lines 13-17 of the proposed order.
2. No appearance is required at the hearing of this Motion on April 22, 2026.

5. 9:00 AM CASE NUMBER: C23-03034

CASE NAME: VICTORIA PLUMLEE VS. JERRY MCLAUGHLIN, MD

***HEARING ON MOTION IN RE: ALLOW SERVICE OF DEF JERRY MCLAUGHLIN M.D. BY EMAIL**

FILED BY: PLUMLEE, VICTORIA

TENTATIVE RULING:

Plaintiff, Victoria Plumlee, moves for an order permitting email service of defendant, Jerry McLaughlin, M.D. pursuant to Code of Civil Procedure, § 413.30 (a)(1).

That statute provides:

If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.

(Code Civ. Proc., § 413.30 (a)(1).)

Plaintiff, in support of the motion, provides very little in terms of analysis as to how this statute applies to this case. Besides describing two failed mailing attempts, she does not describe efforts to serve the summons via other forms of permitted service. On this record, plaintiff fails to show "reasonable diligence" to effect service of the summons by another method "authorized under [Chapter 4 of Part 2, Title 5 of the Code of Civil Procedure (entitled "Service of Summons"))." As further pointed out in the opposition filed by Stanford Health Care, a website appearing to relate to defendant Dr. McLaughlin's art identifies his home as being in Mexico. (Request for Judicial Notice in Support of Opposition, Ex. 3-4.)

Printouts submitted by plaintiff in support of the motion are from the same website, suggesting plaintiff is aware of the content of that website. (See Declaration of Robert G. Schock, Ex. F.) Notwithstanding plaintiff's awareness, she makes no attempt to show why the requirements for service of a defendant outside the United States should not be complied with. (See Code Civ. Proc., § 413.10 (c) [describing requirements for serving defendant in another country as being subject to "the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory," and further noting that the rules are "subject to" the provisions of the Hague Service

Convention.].)

On reply, plaintiff argues “Dr. McLaughlin's current physical address cannot be verified with the certainty required for formal international service,” and that, as a result, the Hague Service Convention “does not apply.” Plaintiff cites no authority for these assertions. She further submits a second declaration from counsel and a request for judicial notice with the reply papers. To the extent the evidence is new (some appears duplicative), plaintiff does not explain why it was not submitted with the initial motion papers. New arguments and evidence cannot be raised in a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) Even if considered, the evidence on reply does not change the result.

The motion is **denied**.

6. 9:00 AM CASE NUMBER: C24-00866

CASE NAME: DEVLIN BRASWELL VS. ALLUVIUM, INC.

***HEARING ON MOTION IN RE: APPROVING AND SETTLING THE RECEIVER'S FINAL REPORT AND ACCOUNTING**

FILED BY: SINGER, KEVIN

TENTATIVE RULING:

This Motion is **continued** to May 20, 2026 at 9:00 a.m. The Court has received and reviewed the (1) Objection to the Receiver's Final Accounting Report filed by Intervenor Patti O'Brien, which is supported by the Declaration of Patricia Coleman filed on April 8, 2026; and (2) Opposition filed by Creditor and Lien Claimant Global Assets Lien and Foreclosures, LLC filed on April 9, 2026. The Court requests that the Receiver prepare, file and serve replies to both of these filings at least five court days before the continued hearing. No further briefings are requested by the Court. No appearance is required on April 22, 2026.

7. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1

FILED BY:

TENTATIVE RULING:

The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. in Department 16. No appearance is required on April 22, 2026.

8. 9:00 AM CASE NUMBER: C24-01216

CASE NAME: SAM CHELLAKAN VS. JOHN SATHRI

***HEARING ON MOTION IN RE: EXPUNGE PLAINTIFF'S NOTICE OF PENDENCY OF ACTION**

FILED BY: SATHRI, JOHN E.

TENTATIVE RULING:

Before the Court is Defendant John E. Sathri's Motion to Expunge Plaintiff's Notice of Pendency of Action.